

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Lyon	Team: Squad #11	CCRB Case #: 201910628	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 10/13/2019 5:05 PM	Location of Incident: Orchard Beach parking lot	Precinct: 45	18 Mo. SOL 4/13/2021	EO SOL 11/28/2021	
Date/Time CV Reported Fri, 11/29/2019 1:53 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/11/2019 10:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Oswaldo Espinoza	08415	947746	045 PCT
2. POF Jennifer Gomez	19367	959663	045 PCT
3. POM James Olson	26339	946078	045 PCT
4. SGT William Melrose	01372	933015	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Melvin Chittum	07373	941547	045 PCT
2. POM Ryan Zelman	04748	965911	045 PCT
3. POM Jason Williamson	11518	945344	045 PCT
4. CPT Johnny Orellana	00000	920679	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Oswaldo Espinoza	Abuse: Police Officer Oswaldo Espinoza searched the vehicle in which § 87(2)(b) was an occupant.	
B.POF Jennifer Gomez	Abuse: Police Officer Jennifer Gomez searched the vehicle in which § 87(2)(b) was an occupant.	
C.POM James Olson	Abuse: Police Officer James Olson searched the vehicle in which § 87(2)(b) was an occupant.	
D.POM Oswaldo Espinoza	Abuse: Police Officer Oswaldo Espinoza searched the vehicle in which § 87(2)(b) was an occupant.	
E.SGT William Melrose	Abuse: Sergeant William Melrose searched the vehicle in which individuals were occupants.	
F.SGT William Melrose	Discourtesy: Sergeant William Melrose spoke discourteously to an individual.	

Case Summary

On November 29, 2019, § 87(2)(b) filed this complaint with IAB by phone. It was received at the CCRB on December 11, 2019, under IAB log #2019-43449. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On October 13, 2019, at approximately 5:05 p.m., in the vicinity of the Orchard Beach parking lot in the Bronx, § 87(2)(b) was with his cousins § 87(2)(b) and § 87(2)(b) attending a car show that § 87(2)(b) saw advertised on Facebook. § 87(2)(b) was parked next to § 87(2)(b) § 87(2)(b)'s friend, § 87(2)(b) known to the investigation only as § 87(2)(b) was also present and had driven separately from § 87(2)(b) § 87(2)(b) began playing music from his vehicle's custom speakers. Soon after, PO Jennifer Gomez and PO Oswaldo Espinoza of the 45th Precinct arrived and PO Espinoza entered § 87(2)(b)'s vehicle and removed the keys and PO Gomez entered § 87(2)(b)'s vehicle and removed the keys (**Allegation A and B: Abuse of Authority – Vehicle search, § 87(2)(g)**). Sgt. William Melrose and PO Melvin Chittum arrived at the location soon after.

§ 87(2)(b) and § 87(2)(b) were both issued summonses and their vehicles were vouchered as arrest evidence. PO James Olson of the 45th Precinct drove § 87(2)(b)'s vehicle from the Orchard Beach parking lot to the 45th Precinct stationhouse and PO Espinoza drove § 87(2)(b)'s vehicle (**Allegation C and Allegation D: Abuse of Authority – Vehicle search, § 87(2)(g)**). § 87(2)(b) attempted to take § 87(2)(b)'s speakers from the location and Sgt. Melrose approached him and removed the speaker from his vehicle (**Allegation E: Abuse of Authority – Vehicle search, § 87(2)(g)**). Sgt. Melrose then confronted § 87(2)(b) and said, "I was going to let you take the fucking speaker," (**Allegation F: Discourtesy – Word, § 87(2)(g)**). Captain Johnny Orellana, PO Ryan Zelman, and PO Jason Williamson of the 45th Precinct were also present at the Orchard Beach parking lot; however, they did not interact with any of the civilians involved in this incident.

§ 87(2)(b) received one summons and § 87(2)(b) received four summonses the details of which are discussed below.

The investigation obtained four body-worn camera videos (*Videos*; **BR 01, BR 02, BR 03, and BR 04** and *Summaries*; **BR 05 and BR 06**) and ten cell-phone videos (*Videos*; **BR 07, BR 08, BR 09, BR 10, BR 11, BR 12, BR 13, BR 14, BR 15, and BR 16** and *Summary*; **BR 17**). Relevant sections are discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Oswaldo Espinoza searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Jennifer Gomez searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Police Officer James Olson searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (D) Abuse of Authority: Police Officer Oswaldo Espinoza searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Sergeant William Melrose searched the vehicle in which individuals were occupants.

It was undisputed that § 87(2)(b) and § 87(2)(b) were attending an illegal car show at the Orchard Beach parking lot which had been advertised on social media. It was also undisputed that both § 87(2)(b) and § 87(2)(b) were playing music from speakers.

§ 87(2)(b) consistently stated (**BR 18, BR 19, BR 20, and BR 21**) that he was stopped for playing music from his vehicle. PO Espinoza entered his vehicle, turned it off, and took out the keys. § 87(2)(b) received a summons for § 87(2)(b) and his vehicle was vouchered as arrest

evidence because he could not remove the speakers from the vehicle. During his phone interview (BR 21) § 87(2)(b) elaborated that he went to the Orchard Beach parking lot with his cousins § 87(2)(b) and § 87(2)(b) § 87(2)(b) did not know anyone else at the car show. § 87(2)(b) first observed police activity on the left side of the parking lot. Afterward, § 87(2)(b) moved his vehicle to the right side of the parking lot and began playing music from his vehicle. § 87(2)(b) drove a 2003 Toyota Corolla with two speakers on each door and 10 speakers in the trunk. § 87(2)(b) built the sound system himself in school and it could not be removed from the vehicle. § 87(2)(b) stated that he did not need to raise his voice to speak over the volume of his music.

Officers returned to the parking lot and PO Espinoza and PO Gomez approached § 87(2)(b) asked whose vehicle it was, and § 87(2)(b) said it was his vehicle. PO Espinoza went into § 87(2)(b)'s vehicle, grabbed the keys, and threw the keys into his police vehicle. PO Espinoza instructed § 87(2)(b) to open his trunk and § 87(2)(b) complied. PO Gomez issued § 87(2)(b) a criminal summons and gave him the opportunity to remove anything he needed from his vehicle. § 87(2)(b) grabbed his book bag, slippers, and phone charger. PO Gomez told § 87(2)(b) that he would have to retrieve his vouchers from the 45th Precinct stationhouse. PO Espinoza gave § 87(2)(b)'s key to PO Olson and instructed him to drive § 87(2)(b)'s vehicle to the 45th Precinct stationhouse.

§ 87(2)(b) misidentified PO Espinoza as PO Chittum because PO Chittum's name was on his voucher.

§ 87(2)(b)'s vouchers (BR 22) showed his vehicle (#§ 87(2)(b)) was vouchered as arrest evidence and various items inside of the vehicle (#§ 87(2)(b)) were vouchered for safekeeping.

§ 87(2)(b)'s summons (#§ 87(2)(b)) for § 87(2)(b) (BR 23) showed that he was observed playing excessive loud music from the trunk of his vehicle which contained a large speaker box with numerous speakers.

§ 87(2)(b) stated (BR 24) that when they arrived at the Orchard Beach parking lot, people were playing music and doing burnouts. There were approximately 1,000 people present. Officers arrived and PO Espinoza went into § 87(2)(b)'s vehicle without his permission and took the keys. The officer took the vehicle and gave § 87(2)(b) summonses. Officers took § 87(2)(b)'s vehicle for impersonating an officer. There were 15 to 20 police vehicles and approximately 30 officers. The other officers went up to other vehicles and told people to leave. Officers had set up a checkpoint at the entrance to the parking lot. § 87(2)(b) and § 87(2)(b) walked outside of the parking lot and waited for § 87(2)(b)'s girlfriend to pick them up.

§ 87(2)(b) similarly stated (BR 25) that at Orchard Beach, § 87(2)(b) parked the vehicle on the other side of the parking lot and started playing music. § 87(2)(b) and § 87(2)(b) exited the vehicle. PO Espinoza and PO Gomez arrived and one of them took § 87(2)(b)'s keys and told him to follow up at the 45th Precinct.

§ 87(2)(b) stated (BR 26) that he went to the Orchard Beach parking lot with his friend § 87(2)(b) (last name unknown) to show off his vehicle at a car show that was advertised on social media. § 87(2)(b) did not know whether the event was legal. When he arrived, there were 100 vehicles participating. § 87(2)(b) parked his vehicle in an open space away from the vehicles that were drifting and began playing music from a speaker that was attached to an amplifier. § 87(2)(b)'s vehicle was a former unmarked police vehicle that was equipped with emergency lights and a siren that he had purchased in an auction. § 87(2)(b) did not have the lights on while his vehicle was in motion, but he did have them on while his vehicle was parked. § 87(2)(b) stated that he did not use the vehicle to impersonate a police officer.

PO Gomez and PO Espinoza arrived at the location and PO Gomez entered § 87(2)(b)'s vehicle, removed the keys from the ignition, and asked, "Whose car is this?" § 87(2)(b) stated it was his vehicle and PO Gomez asked him whether he was a cop or law enforcement. § 87(2)(b) told PO Gomez that he was not law enforcement, showed her the medallion on his key ring with the vehicle number, and told her that the vehicle was a former police vehicle. PO Gomez issued § 87(2)(b) four

summonses and told him that they were going to take his vehicle. § 87(2)(b) believed PO Gomez drove his vehicle to the stationhouse. § 87(2)(b) was situated next to § 87(2)(b) and his vehicle was taken due to his music. § 87(2)(b) got his vehicle back on December 20, 2019.

§ 87(2)(b)'s vouchers (**BR 27**) showed that his vehicle (#§ 87(2)(b)) and speakers (#§ 87(2)(b)) were vouchered as arrest evidence.

§ 87(2)(b) received four summonses (**BR 28**): § 87(2)(b)

PO Gomez and Sgt. Melrose consistently stated (**BR 29** and **BR 30**) that they were assigned to details at Orchard Beach for an illegal car show that had been advertised on social media. PO Gomez explained (**BR 29**) that she had been given instructions from Sgt. Melrose to give summonses for any violations observed and to voucher the speakers, or the vehicle if the speakers did not come out, for any noise violations. Sgt. Melrose stated (**BR 30**) that he received instructions from Captain Orellana to make sure no one was racing, drinking, using drugs, or making loud noises that would cause a nuisance to beach goers.

PO Gomez stated (**BR 29**) that she received a phone call from PO Chittum explaining that there was a vehicle with loudspeakers and flashing emergency lights on the other side of the parking lot. PO Gomez and PO Espinoza went to the location and encountered § 87(2)(b) whose vehicle appeared to look like an unmarked police vehicle, and PO Gomez took § 87(2)(b)'s keys out of his vehicle. PO Gomez explained that she dealt with a lot of drag racing so for the safety of herself and her partner she took the keys out of § 87(2)(b)'s vehicle so no one would drive off during the stop.

PO Gomez asked § 87(2)(b) if he was the owner of the vehicle. § 87(2)(b) said yes, and PO Gomez asked if he was law enforcement, a volunteer, or a police officer and he said no. PO Gomez told him it was illegal to have the lights and sirens and represent a police vehicle. § 87(2)(b) said he got the vehicle at an auction with the lights and siren on it. There was a speaker attached to the vehicle creating loud noise. PO Gomez told § 87(2)(b) that his car was getting vouchered. PO Gomez gave him a copy of his summons and explained how to go to court. PO Gomez gave him a voucher for the speaker as well. PO Espinoza drove § 87(2)(b)'s vehicle to the stationhouse.

§ 87(2)(b) was parked next to § 87(2)(b). § 87(2)(b) had speakers with loud music. PO Gomez could hear music before even exiting her vehicle. PO Espinoza warned § 87(2)(b) to turn off the music and leave but he stood there and did not comply. § 87(2)(b) was told twice to turn off his music and leave. PO Gomez told § 87(2)(b) that his vehicle was getting vouchered for the loud music. PO Gomez gave § 87(2)(b) his summons and PO Olsen drove § 87(2)(b)'s vehicle to the stationhouse.

Sgt. Melrose stated (**BR 30**) that PO Espinoza had informed him of a stopped vehicle. Sgt. Melrose went to the location and observed § 87(2)(b)'s vehicle which resembled an unmarked police vehicle. Unspecified officers said that the owner of the vehicle, § 87(2)(b) was driving with his lights on and they believed he was an officer taking action and went to assist him. When they met up with § 87(2)(b) he informed that he was not a police officer. Sgt. Melrose did not observe the lights himself and did not recall whether there was a siren. § 87(2)(b) was not playing music when Sgt. Melrose arrived.

§ 87(2)(b)'s vehicle was parked nearby with speakers on the ground. Sgt. Melrose was informed that § 87(2)(b)'s speakers were playing loud music. PO Espinoza and PO Gomez told Sgt. Melrose that they were going to issue a summons and seize the speakers. § 87(2)(b) asked to take his speakers and leave, and Sgt. Melrose told him he would deal with him soon. Sgt. Melrose went to his police vehicle to get his phone. While he was away, § 87(2)(b) put the speakers into his vehicle and attempted to leave. Sgt. Melrose instructed him to remove his speakers from the vehicle and did not recall whether he entered the vehicle or only had § 87(2)(b) remove the speakers. Sgt. Melrose stated that § 87(2)(b) could not take the speakers because they were being seized as arrest or court evidence. Sgt. Melrose explained that speakers can be seized for court evidence for excessive noise. If the

speakers are unable to be removed from the vehicle, then the entire vehicle can be removed as evidence.

PO Espinoza's body-worn camera footage (**BR 02; video** and **BR 06; summary**) shows PO Espinoza exiting his vehicle at 1:30 seconds. There is loud music playing as PO Espinoza approaches § 87(2)(b)'s vehicle. The trunk is open and there are speakers inside. PO Espinoza says, "Whose car is this?" and enters through the driver's side and takes the keys out of the ignition. At 52:50 minutes, PO Espinoza enters § 87(2)(b)'s vehicle and drives it to the stationhouse and the video ends.

PO Gomez's body-worn camera footage (**BR 01; video** and **BR 05; summary**) shows PO Gomez exiting her vehicle at 00:45 seconds. There is music coming from § 87(2)(b)'s vehicle. PO Gomez enters § 87(2)(b)'s vehicle, removes the keys, and asks whether the vehicle was a department vehicle. PO Gomez proceeds to ask § 87(2)(b) if he is a member of law enforcement or has a permit to have emergency lights. PO Gomez informs § 87(2)(b) that it is not legal for him to have emergency lights. At 4:20 minutes, PO Gomez gets off the phone with her commanding officer and informs PO Espinoza that they are going to voucher § 87(2)(b)'s vehicle and speakers. At 33:20 minutes, PO Gomez informs § 87(2)(b) that he is getting a summons for his speakers and explains that he will get a voucher for the vehicle at the stationhouse and he can get his vehicle back when the court gives him a receipt. At 36:20 minutes, PO Olson enters § 87(2)(b)'s vehicle to drive it after § 87(2)(b) removes some personal belongings. PO Gomez speaks on the phone with § 87(2)(b)'s mother and explains that the vehicle is being vouchered because of the speakers.

Sgt. Melrose's body-worn camera footage (**BR 03; video** and **BR 06; summary**) shows § 87(2)(b) taking a speaker from § 87(2)(b)'s vehicle to his own vehicle at 00:52 seconds. § 87(2)(b) then explains to Sgt. Melrose and PO Gomez that he had sold the speakers to § 87(2)(b) had just started playing his music, and he, § 87(2)(b) was taking the speakers back. Sgt. Melrose tells § 87(2)(b) to give them a minute. PO Gomez explains to Sgt. Melrose that she took the keys out of the vehicle so quickly she was not sure whether § 87(2)(b) was playing music, however, they were instructed by the commanding officer to take the speakers. At 6:38 minutes, Sgt. Melrose approaches § 87(2)(b)'s passenger window. § 87(2)(b) and several other unidentified individuals are sitting in the vehicle. Sgt. Melrose asks § 87(2)(b) if he took the speakers. Sgt. Melrose instructs § 87(2)(b) to return the speakers. § 87(2)(b) opens the back-passenger door and Sgt. Melrose reaches in and removes the speaker.

A cellphone video (**BR 16; video** and **BR 17; summary**) provided by § 87(2)(b) captured music coming from § 87(2)(b)'s vehicle and the emergency lights engaged in his vehicle prior to the officers' arrival.

§ 87(2)(g)

[REDACTED]

NYC Administrative Code 24-233 (**BR 31**) states that no person shall operate or use or cause to be operated or used any personal audio device in a manner as to create an unreasonable noise.

Patrol Guide procedure 214-23 (**BR 32**) states that for an unreasonable noise violation, officers are to seize the sound reproduction device for evidentiary purposes.

NY Vehicle and Traffic law §375(41)(1) (**BR 33**) states that no light, other than a white

light, and no revolving, rotating, flashing, oscillating or constantly moving white light shall be affixed to, or displayed on any vehicle.

NY Vehicle and Traffic law §375(41)(4) (**BR 33**) states that one blue light may be used by a volunteer firefighter.

NY Vehicle and Traffic law §375(26) (**BR 33**) states a gong or siren whistle shall not be used on any vehicle other than an authorized emergency vehicle.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Discourtesy: Sergeant William Melrose spoke discourteously to

§ 87(2)(b)

It was undisputed that Sgt. Melrose spoke discourteously to § 87(2)(b)

Sgt. Melrose's body-worn camera footage (**BR 03; video** and **BR 06; summary**) captured Sgt. Melrose confronting § 87(2)(b) after he attempted to remove § 87(2)(b)'s speaker from the scene. At 7:23 minutes, Sgt. Melrose says, "I was going to let you take the fucking speaker [...] No, you thought I was going to leave, and you took it. I was going to give you the speaker back."

Sgt. Melrose explained during his interview (**BR 30**) that he said the word "fucking" in a statement to make a point and that he did not curse at § 87(2)(b)

Patrol Guide procedure 200-02 (**BR 34**) states that officers are to respect the dignity of each individual and render services with courtesy and civility.

In DAO-DCT Case Number: 2015-15012 (**BR 40**), the court held that an officer is not permitted to use profanity when the profanity serves no legitimate purpose but to belittle the civilian.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**BR 35** and **BR 36**).
- PO Gomez has been a member of service for five years and this is the first CCRB complaint in which she has been named a subject.
- PO Espinoza has been a member of service for 12 years and named a subject in three additional CCRB complaints and six allegations, none of which were substantiated.
 - § 87(2)(g)
- PO Olson has been a member of service for 13 years and named a subject in three additional CCRB complaints and seven allegations, one of which was substantiated.
 - CCRB #201708778 involved one substantiated allegation of a forcible removal to hospital § 87(4-b) § 87(2)(g) The Board recommended Command

Discipline A and the NYPD has not yet imposed any discipline.

- § 87(2)(g) [REDACTED]
- Sgt. Melrose has been a member of service for 17 years and named a subject in six additional CCRB complaints and eight allegations, none of which were substantiated.

○ § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of November 5, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**BR 37**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

■ [REDACTED]

Squad No.: 10

Investigator:	<u>Kelly Lyon</u>	<u>Inv. Kelly Lyon</u>	<u>03/08/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>3/15/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date